

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

QVC, INC. AND CORNERSTONE BRANDS, INC., *Complainants*

v.

OCEAN NETWORK EXPRESS PTE. LTD., *Respondent*.

DOCKET NO. 25-09

Served: September 3, 2025

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

ORDER ON PROPOSED SCHEDULING ORDER

On August 29, 2025, the parties filed a joint status report and proposed discovery schedule. (Dkt. 15.) The parties state that they have made their initial disclosures and contacted the Commission's Office of Consumer Affairs and Dispute Resolution Services (CADRS). The parties are reminded *not* to state the parties' positions on whether to agree to mediation or their settlement positions in communication with the undersigned.

In the complaint, Complainant requested an oral hearing. Pursuant to Commission Rules 62(a)(5) and 62(b)(3), the "presiding officer will determine whether an oral hearing is necessary." 46 C.F.R. § 502.62(a)(5), (b)(3). At this point in the proceeding, it is not clear that an oral hearing is necessary. Accordingly, the request for an oral hearing is **DENIED WITHOUT PREJUDICE**.

Pursuant to 46 C.F.R. § 502.141(g), discovery must be completed within 150 days of the service of the answer on August 14, 2025, that is no later than January 11, 2026. (Dkt. 14.) The proposed schedule concludes discovery four months beyond 150 days after the filing of Respondent's answer on August 14, 2025. The parties have also proposed a discovery schedule that concludes briefing two months after the June 17, 2026, date the Commission set for issuance of the Initial Decision. (Dkt. 7.) The parties assert that good cause exists to extend the 150-day deadline on the following grounds:

[T]he parties anticipate that documentary discovery in this proceeding will be extensive, complicated, and challenging. Among other things, there may be a significant number of depositions, possibly some involving overseas deponents, subpoenas for third-party witnesses here and abroad, and potentially issues regarding foreign discovery statutes. The Commission's regulations requiring that discovery be completed within 150 days of the service of a respondent's answer may be a reasonable time in a relatively straightforward case; however, it is not realistic for a case of this magnitude in which documentary discovery will involve a significant number of documents, depositions of as many as ten witnesses per party, international discovery, and alleged damages of at least \$21.7 million.

Joint Status Report at 3.

The undersigned finds that the generic rationale offered by the parties is insufficient to establish good cause for extension of the 150-day deadline set forth in a regulation. In this regard, the parties have failed to quantify the number of witnesses to be deposed, foreign witnesses and third-party witnesses to be deposed, documents to be produced, or disputed issues in a proceeding involving only one service contract year. At this stage of the proceeding the proposed discovery schedule is not reasonable because it does not comply with the 150-day deadline and does not allow for issuance of the Initial Decision by June 17, 2026, as was instructed in the Notice of Filing Complaint and Assignment. (Dkt. 7.)

Accordingly, the parties are directed to submit an amended proposed scheduling order that provides for the completion of discovery within the 150-day deadline. The parties may propose an extension of the deadline beyond 150 days if they contend that additional time is necessary to fully develop the record. In that event, the parties are directed to provide sufficient detail to justify the need for an extension. Such request should include, *inter alia*, the number of fact and expert depositions anticipated, a description of any foreign and third-party witnesses likely to be deposed, a description of the estimated volume of document production, and a description of any impediments to establishing deadlines in compliance with the applicable regulation and notice.

The parties are hereby **ORDERED** to file an amended proposed scheduling order in compliance with this order no later than **September 12, 2025**.

MARY A. HERVEY -S  Digitally signed by MARY A.
HERVEY -S
Date: 2025.09.03 11:54:17 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge